

23STCV25997 23STCV25997

County: los-angeles

Division: Civil Law and Motion

Department: 224

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Case Number: 23STCV25997 Hearing Date: September 24, 2026 Dept: 224

Roberts v. Los Angeles County

TENTATIVE RULING

Defendant County of Los Angeles's motion for summary judgment is GRANTED.

The first through fifth causes of action are barred by prosecutorial immunity, which extends to the County, and independently by the six-month limitations period of Government Code section 945.6. Plaintiff does not oppose adjudication of the sixth through eighth causes of action.

Introduction

On October 25, 2023, Plaintiff Tyshika Roberts filed a verified Complaint against Defendant County of Los Angeles and Does 1-10. The Complaint alleges eight causes of action: (1) unilateral mistake, (2) undue influence, (3) defamation, (4) intentional infliction of emotional distress, (5) negligence, (6) violation of the Fifth

Amendment, (7) violation of the Fourteenth Amendment (equal protection), and (8) violation of the Sixth Amendment. (Basil Decl., Ex. A [Compl.])

On July 1, 2026, the County filed this Motion for Summary Judgment or, in the Alternative, Summary Adjudication, with a Separate Statement, Compendium of Evidence, and Request for Judicial Notice.

On September 10, 2026, Plaintiff filed an Opposition.

On September 17, 2026, the County filed a Reply.

Timeliness

The opposition was due 20 days before the hearing, on September 4, 2026. (Code Civ. Proc., § 437c, subd. (b)(2).) Plaintiff filed it on September 10, six days late. Plaintiff's counsel declares that she calendared the deadline under the former 14-day rule and did not learn of the 2025 amendment until the County filed a notice of non-opposition on September 8. (Swan Decl.,

¶¶ 3-6.) The County asks the Court to disregard the opposition.

The Court has discretion to consider late-filed papers. (Cal. Rules of Court, rule 3.1300(d).) The County filed a full reply addressing each of Plaintiff's arguments, and it identifies no prejudice. The Court also notes that the reply was due 11 days before the hearing, on September 13, 2026 (Code Civ. Proc., § 437c, subd. (b)(4)), but was filed on September 17. The Court exercises its discretion to consider both the opposition and the reply.

Request for Judicial Notice

The County requests judicial notice of the verified Complaint (Basil Decl., Ex. A), the information in People v. Roberts, Case No. LA030094 (Ex. C), the People's opposition to Plaintiff's Penal Code section 995 motion (Ex. D), the abstract of judgment (Ex. F), three docket printouts from the criminal case (Exs. G, H, I), and Plaintiff's Proof of Current Registration (Ex. J).

The request is granted as to Exhibits A, C, D, F, G, H, and I as records of a court of this state. (Evid. Code, § 452, subd. (d).) The Court notices the existence and contents of these records, not the truth of hearsay statements within them. Exhibit J is not a court record. Because the Court does not rely on it, the request is denied as to Exhibit J as unnecessary.

Evidentiary Objections

Plaintiff submits nine objections to evidence offered in support of the motion: the sentencing transcript (Basil Decl., Ex. E), the People's opposition to Plaintiff's Penal Code section 995 motion (Ex. D), the abstract of judgment (Ex. F), the docket printouts (Exs. G, H, I), the Proof of Current Registration (Ex. J), the Basil Declaration's foundation for Exhibits C through J, and certain characterizations of the Complaint in the County's separate statement and memorandum. The objections are **OVERRULED**.

Defendant submits four objections to Plaintiff's responses to the separate statement, on the ground that those responses assert disputes through argument unsupported by evidence. The objections are **OVERRULED**.

MOTION FOR SUMMARY JUDGMENT

The County moves for summary judgment on the grounds that each cause of action fails as a matter of law, or alternatively for summary adjudication of the following issues:

Issue No. 1: Each Claim Fails as a Matter of Law Because Prosecutorial Immunity, Which Extends to the County, Bars Civil Liability for Each of Plaintiff's Claims

Issue No. 2: Each Claim Fails Because a District Attorney Acts for the State, Not the County, When Prosecuting, and Therefore the County Is Not Liable Under Any of Plaintiff's Claims

Issue No. 3: Each State Law Claim (Claims 1–5) Fails as a Matter of Law Because They Are Time-Barred by Government Code section 945.6

Issue No. 4: Each Claim Is Independently Barred by Its Own Statute of Limitations

Issue No. 5: The Unilateral Mistake Claim (Claim 1) Fails Because Roberts Seeks the Wrong Remedy and Cannot Establish the Elements

Issue No. 6: The Undue Influence Claim (Claim 2) Fails Because It Is Not a Cause of Action and Roberts Cannot Establish the Statutory Factors

Issue No. 7: The Defamation Claim (Claim 3) Fails as a Matter of Law Because It Is Barred by the Litigation Privilege

Issue No. 8: The Intentional Infliction of Emotional Distress Claim (Claim 4) Fails

Issue No. 9: The Negligence Claim (Claim 5) Fails

Issue No. 10: The Fifth Amendment Due Process Claim (Claim 6) Fails as a Matter of Law Because the County Is Not a Federal Actor and Roberts Does Not Have a Cognizable Liberty Interest in Association with His Nieces and Nephews

Issue No. 11: The Fourteenth Amendment Equal Protection Claim (Claim 7) Fails Because Roberts Alleges No Differential Treatment

Issue No. 12: The Sixth Amendment Claim (Claim 8) Fails Because Roberts Had Notice of the Nature and Cause of the Charges Against Him

Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843). In analyzing such motions, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent’s claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.”

(Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294). Thus, summary judgment or summary adjudication is granted when, after the Court’s consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist and the moving party is entitled to judgment as a matter of law. (CCP § 437c(c); Villa v. McFarren (1995) 35 Cal.App.4th 733, 741).

As to each claim as framed by the complaint, the party moving for summary judgment or summary adjudication must satisfy the initial burden of proof by presenting facts to negate an essential element. (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520). Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389). A motion for summary judgment or summary adjudication must be denied where the moving party’s evidence does not prove all material facts, even in the absence of any opposition or where the opposition is weak. (See Leyva v. Superior Court (1985) 164 Cal.App.3d 462, 475; Salesguevara v. Wyeth Labs., Inc. (1990) 222 Cal.App.3d 379, 384, 387).

Once the moving party has met the burden, the burden shifts to the opposing party to show via specific facts that a triable issue of material facts exists as to a cause of action or a defense thereto. (CCP § 437c(o)(2)). When a party cannot establish an essential element or defense, a court must grant a motion for summary adjudication. (CCP § 437c(o)(1)-(2)).

Scope of Issues

Every cause of action rests on the same alleged wrong: that the prosecution charged Plaintiff with an offense against a minor and induced Plaintiff to plead guilty to it, although the victim was an adult. (Complaint, ¶¶ 7-9, 18, 21, 23-27, 42-43, 47-51, 56, 64, 66, 73, 77, 82, 90.) The Complaint alleges that the County "charged the Plaintiff with claim, knowing full well that it was frivolous" (id., ¶ 25), that Plaintiff "was instead tricked into taking a plea deal for a frivolous charge" (Id., ¶ 26), and that the breach of duty occurred "when the Defendant placed frivolous charges on the Plaintiff" (Id., ¶ 64).

The Complaint alleges that Plaintiff is now registered as a Tier 3 offender, but it identifies that registration as a consequence of the charge and plea, not as a separate wrong. The Complaint expressly alleges: "Plaintiff is aware that his status as a Tier 3 Sexual Offender, will not change, however Plaintiff has an issue with the Plea Deal definition regarding the alleged minority of the victim." (Complaint, ¶ 12.) The Complaint does not allege that any County employee classified, certified, or maintained Plaintiff's registration record.

Issue No. 1: Prosecutorial Immunity (First through Fifth Causes of Action)

A public employee "is not liable for injury caused by his instituting or prosecuting any judicial or administrative proceeding within the scope of his employment, even if he acts maliciously and without probable cause." (Gov. Code, § 821.6.) Our Supreme Court has confirmed that section 821.6 applies to claims of injury caused by a public employee's initiation or prosecution of an official proceeding. (*Leon v. County of Riverside* (2023) 14 Cal.5th 910.) A public entity is not liable for an injury resulting from an act or omission of its employee where the employee is immune from liability. (Gov. Code, § 815.2, subd. (b).)

The County has carried its initial burden. The People charged Plaintiff by information on February 8, 1999. (Basil Decl., Ex. C at 1-8.) On November 29, 2001, Plaintiff was convicted on a guilty plea of second degree robbery and forcible oral copulation and sentenced to state prison. (Id., Ex. F at 1-2.) Plaintiff's Complaint alleges that each injury was caused by the charging decision and the plea negotiation. (Complaint, ¶¶ 23-27, 42, 64, 66-68, 77, 82.) Filing charges and negotiating a guilty plea are the core of "instituting or prosecuting" a judicial proceeding. Whatever the prosecutors' motive, and whether their conduct is characterized as a mistake, undue influence, a false publication, outrageous conduct, or negligence, the alleged injury is one "caused by" the prosecution of the criminal case. The prosecutors are therefore immune under section 821.6, and the County is immune under section 815.2, subdivision (b).

The burden therefore shifts to Plaintiff to show a triable issue of material fact as to the immunity defense. (Code Civ. Proc., § 437c, subd. (p)(2).) Plaintiff does not dispute that the charging and plea decisions are immunized. Instead, Plaintiff argues that the injury arises from the County's later classification and certification of Plaintiff's registration status, a non-prosecutorial administrative function. However, that theory is not pleaded. The Complaint attributes every injury to the charge and the plea, and it expressly disclaims any challenge to Plaintiff's Tier 3 status. (Complaint, ¶ 12.)

The pleadings delimit the issues to be considered on a motion for summary judgment. This means that a plaintiff cannot raise new theories of liability, for the first time in opposition to a summary judgment motion if those theories were not included in the original complaint. The pleadings set the boundaries of the issues to be resolved at summary judgment, and any new theories or claims not included in the pleadings must be added through a formal amendment before the hearing on the summary judgment motion (*Laabs v. City of Victorville*, 163 Cal.App.4th 1242 (2008)). The scope of issues in a summary judgment motion is generally limited to the claims framed by the pleadings, and a party may not oppose a summary judgment motion based on a claim, theory, or defense that is not alleged in the pleadings (*Jacobs v. Coldwell Banker Residential Brokerage Co.*, 14 Cal.App.5th 438 (2017)). A plaintiff cannot use opposition papers as a substitute for an amended pleading (*Hutton v. Fidelity National Title Co.*, 213 Cal.App.4th 486 (2013)). A plaintiff cannot defeat summary judgment by recasting the claims in opposition. (Conroy, *supra*, 45 Cal.4th at p. 1250.)

Plaintiff's reliance on *Van de Kamp v. Goldstein* (2009) 555 U.S. 335 does not change this result. *Van de Kamp* addresses federal immunity under 42 U.S.C. section 1983, not section 821.6. It also held that prosecutors were absolutely immune for administrative functions directly connected with the conduct of a trial. It does not support treating the charge and plea alleged in this Complaint as anything other than prosecutorial conduct.

Plaintiff has not met the burden on summary judgment. Plaintiff submits no evidence of any kind and relies only on the County's exhibits and on the absence of evidence in the County's compendium (Basil Decl., Exs. C, E-J). Pointing to gaps in the moving party's evidence on a theory the moving party was not required to address does not create a triable issue. Because Plaintiff concedes that the conduct actually alleged in the Complaint is prosecutorial, no triable issue of material fact remains as to the immunity defense.

Summary adjudication of Issue No. 1 is GRANTED as to the first through fifth causes of action.

Issue No. 3: Government Code Section 945.6 (First through Fifth Causes of Action)

Where a public entity gives written notice of the rejection of a claim, suit for money or damages must be commenced "not later than six months after the date such notice is personally delivered or deposited in the mail." (Gov. Code, § 945.6, subd. (a)(1).)

The County has carried its initial burden on this independent ground. Plaintiff's verified Complaint admits that Plaintiff presented the claim on April 6, 2023, that the County rejected it on April 19, 2023, and that the six-month period of section 945.6 governs. (Complaint, ¶¶ 4-5.) Six months from April 19, 2023 was October 19, 2023. Plaintiff filed this action on October 25, 2023. Each of the five state-law causes of action seeks money damages. (Id. at 16.)

The burden therefore shifts to Plaintiff. Plaintiff does not dispute the dates. (PSSUF 19.) Plaintiff argues only that a factfinder could conclude that a six-day delay does not reflect a lack of diligence. Plaintiff's authorities, *John R. v. Oakland Unified School Dist.* (1989) 48 Cal.3d 438 and *J.M. v. Huntington Beach Union High School Dist.* (2017) 2 Cal.5th 648, concern the deadlines for presenting a claim to the public entity, not the period to file suit after a claim is rejected.

Plaintiff has not met the burden on summary judgment. Diligence is not an element of section 945.6, which sets a fixed period measured from the date of the rejection notice, so a dispute about diligence is not a dispute about a material fact. Plaintiff offers no evidence of tolling, of any defect in the rejection notice, or of any later rejection date, and argument alone cannot create a triable issue. On the undisputed dates, the action was filed six days after the limitations period expired.

Summary adjudication of Issue No. 3 is GRANTED as to the first through fifth causes of action.

Issues Nos. 10, 11, and 12: Constitutional Claims (Sixth through Eighth Causes of Action)

The County has carried its initial burden on each constitutional claim. The Fifth Amendment's Due Process Clause applies only to the federal government, and the only named defendant is the County, a local entity. (Complaint. at 1.) The Complaint does not allege that Plaintiff was treated differently from anyone similarly situated. (Id., ¶¶ 79-84.) The information identified the statute and elements of each charged offense and gave notice that conviction of the sex offenses would require registration under Penal Code section 290. (Basil Decl., Ex. C at 1-8.)

Plaintiff has not met the burden on summary judgment as to these causes of action. Plaintiff expressly does not oppose summary adjudication of the sixth, seventh, and eighth causes of action and offers no evidence or argument to show a triable issue on any of them. A request for leave to amend at some later time does not create a triable issue of material fact.

Summary adjudication of Issues Nos. 10, 11, and 12 is GRANTED as to the sixth through eighth causes of action.

Remaining Issues

Because every cause of action is disposed of on the grounds above, the Court does not reach Issues Nos. 2 and 4 through 9.

Request for Leave to Amend

Plaintiff asks that adjudication be entered without prejudice to a motion for leave to amend, to replead the constitutional claims under 42 U.S.C. section 1983 and to relabel the undue influence claim. Plaintiff has not filed a motion for leave to amend, has not submitted a proposed amended pleading, and has not explained how any amendment would overcome prosecutorial immunity or the section 945.6 bar.

Discovery is closed and trial is set for October 26, 2026. The request is DENIED.

Conclusion

Defendant County of Los Angeles's Motion for Summary Judgment is GRANTED.

Moving Party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at SMCDept224@lacourt.org indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.